

SANHEDRIN (J. high court)

Also: Great Academy; Great Sanhedrin (Jer.)

SANHEDRIN. Great [Sanhedrin](#) usually means the supreme political, religious, and judicial body in Palestine during the Roman period, both before and after the destruction of the Temple, until the abolishment of the patriarchate (c. 425 C.E.). The precise definition of the term Sanhedrin has engaged the attention of historians in the past century, owing to the apparent conflict between the Hellenistic and rabbinic sources as to its nature and functions. While in the Hellenistic sources, in Josephus and the Gospels, it appears as a political and judicial council headed by the ruler, the tannaitic sources depict it chiefly as a legislative body dealing with religious matters, and in rare cases acting as a court—for instance, to try a false prophet or high priest.

The first historical mention of the [Sanhedrin](#) is in the statement of Josephus that in 57 B.C.E. [Gabinus](#) divided the country into five *synedria* (Ant., 14:91) or *synodoi* (Wars, 1:170). Most scholars agree that the reference is to a purely political body, as the Romans did not interfere with the religious life of conquered people. Their objective was, as Schalit points out, the prevention of uprisings. The next report describes [Hyrchanus](#), as ethnarch of Judea, presiding over the Sanhedrin trying Herod, the strategus of the Galilee, for political murder (Ant., 14:168–70). Subsequently, when Herod became king, he had the Sanhedrin condemn Hyrcanus for plotting against him (Ant., 15:173), though according to another account, he did so himself without the Sanhedrin (15:176). Josephus' next reference to a Sanhedrin is to one that consisted of Roman high officials, convened at the suggestion of Augustus in Syria, to try the sons of Herod for rebellion against their father (16:356ff.); according to Josephus (Wars, 1:537), this Sanhedrin consisted of Herod's "own relatives and the provincial governors." When the Sadducean high priest, Ananus, "convened the judges of the Sanhedrin" (Jos., Ant., 20:200) to condemn James, the brother of Jesus, his opponents, the Pharisees, took great pains to have him removed. Their plea before the Roman governor that Ananus "had no authority to convene the Sanhedrin without his consent" (20:202) was obviously a pretext. Ananus' Sanhedrin was no doubt a Sadducean one, so that in removing Ananus shortly after this, Agrippa II pleased the Pharisees. On the other hand, the Sanhedrin convened by Agrippa II to permit the levitical singers to wear the priestly linen garments—apparently in accord with II Chronicles 5:12—was a Pharisaic one (Arakh. 11a–b). Josephus' objection to this ruling (Ant., 20:216–18) represents the priestly-Sadducean view. Josephus received his commission as a supreme commander from the Sanhedrin (Life, 62), though he usually refers to it as the *koinon* (*ibid.*, 190, 309) and describes it as the assembly of the leading people of Jerusalem (*ibid.*, 28, see also Wars, 2:562).

The Gospels describe three trials before the [Sanhedrin](#), all of them presided over by the high priest, but apparently in different locations. Jesus was tried on Passover night, or on the preceding night, in the palace of the high priest (Mark 14:53ff.; John 18:13). His disciples, Peter and John Zebedee were questioned at "eventide," "in Jerusalem" (Acts, 4:3–6). In the case of Paul, the chief priest "and all their Sanhedrin" were ordered to meet in the chief captain's quarters (Acts, 22:25–30). The tannaitic sources, however, depict the Great Sanhedrin as an assembly of sages permanently situated in the Chamber of Hewn Stone in the Temple, meeting daily, only during the daytime between the hours of the two daily sacrifices (approximately 7:30 A.M.–3:30 P.M.) and never at night, on the Sabbaths or festivals, or on their eves. It was the place "where the Law went forth to all Israel" (Sanh. 11:2; Tosef., [Sanh.](#) 7:1) and was the final authority on [halakhah](#); the penalty of contravening its decisions on the part of a scholar—[zaken mamre](#)—was death (Sanh. *ibid.*). Settling questions of priestly genealogy was also within the province of the Great Sanhedrin (Mid. 5:4; Tosef., Sanh. loc. cit.). Actual cases are recorded of questions being sent to "the sages in the Chamber of Hewn Stone" (Eduy. 7:4) and of [Rabban](#) Gamaliel going to the Chamber and receiving a reply to a question which he put (Pe'ah 2:6).

The competence of the [Sanhedrin](#) is listed in tannaitic literature. "A tribe, a false prophet, or the high priest may not be tried save by the court of seventy-one; they may not send forth the people to wage a battle of free choice save by the decision of the court of one and seventy; they may not add to the City [of Jerusalem], or the Courts of the Temple save by the decision of the court of seventy-one; they may not set up sanhedrins for the several tribes save by the decision of the court of one and seventy; and they may not proclaim [any city to be] an [Ir ha-Niddaḥat](#) [cf. [Deut.](#) 13:13–19] save by the decision of one and seventy" (Sanh. 1:5). The [Tosefta](#) enumerates still other functions: "They may not burn the red heifer save according to the instructions of the court of 71; they may not declare one a [zaken mamre](#) save the court of 71; they may not set up a king or a high priest save by the decision of the court of 71" (Tos.,

[Sanh.](#) 3:4). Elsewhere the Mishnah rules that the rites of the water of ordeals (see [Sotah](#); [Sot.](#) 1:4) and the [eglah arufah](#)—i.e., the breaking of the heifer's neck in order to atone for the sin of an anonymous murder (cf. Deut. 21: 1–9)—may be performed only under the supervision of the Great *Bet Din* in Jerusalem ([Sot.](#) 9:1).

Unlike Buechler (see bibl., pp. 56ff.) and Zeitlin (see bibl., pp. 70–71) who regard the tannaitic list of the functions of the Great *Bet Din* as merely ideal, Tchernowitz (see bibl., 242ff.) insists upon its practical reality. Thus, Simeon the Hasmonean was appointed high priest and "Prince of the people of God" (see [Asaramel](#)) by the Great Assembly of priests and heads of the nation (I Macc., 14:27ff.; cf. Tosef., [Sanh.](#) 3:4). Again, Jonathan, after the war with Demetrius, returned and called the elders of the people together; and took counsel with them to raise the height of the walls of Jerusalem, and to raise a great mound between the citadel and the city" (*ibid.* 12:35–36), things which could only be done, according to the Mishnah, with the consent of the Great Court ([Sanh.](#) 1:5; [Shevu.](#) 2:2). Yet in rebuilding the ruins of the city and its walls and carrying on defensive wars, Jonathan did not consult with the Assembly; neither did Simeon take counsel with regard to the fortifying of Judea (I Macc., 13:33). These things did not require the consent of the [Sanhedrin](#) (Tchernowitz, op. cit., 243–7). Furthermore, the reference to "tribes," as Alon says, is to sections of the country; or else, the term "tribes," like "false prophet" may put into legal formulation practices current in the biblical period, as Z. Karl suggests.

Another aspect of the conflict between the sources is that whereas the tannaitic documents represent the [Sanhedrin](#) as being composed of Pharisaic scholars, headed by the foremost men of the sect—the *nasi* and *av bet din*—the Hellenistic accounts usually make the high priest, or the king, the president of the body. Thus Samaia and Pollion (that is, probably, Shemaiah and Avtalyon or Shammai and Hillel) and Simeon b. Gamaliel, who are mentioned in Josephus, and Gamaliel I, who is cited in the Book of Acts, are referred to in these books merely as prominent members of the Sanhedrin, though in the tannaitic documents they are represented as the presidents of that body. In the Book of Acts, moreover, the Sanhedrin is depicted as being "one part Sadducees and the other Pharisees" (Acts, 23:6).

The historians' answers may be classified into three groups. Some scholars maintain that there was a single [Sanhedrin](#), the supreme political, religious and judicial body, but they differ among themselves as to the other aspects of the reconstruction. Schuerer, who dismisses the rabbinic sources, regards the high priest as the presiding officer. Hoffmann held the highest office to belong to the Pharisaic *nasi*, though the secular rulers often usurped the role. Jelski, following a middle course, divides the functions of the presidency between the high priest, upon whom he bestows the title *nasi*, and the Pharisaic *av bet din*. Similarly, G. Alon believes that the Sanhedrin was composed of Pharisees and Sadducees, each dominating it by turns. Chwolson thinks that the Great Sanhedrin of the rabbinic documents was nothing but a committee on religious law appointed by the Sanhedrin (so, too, Dubnow and Klausner). Common to all these theories is the erroneous assumption that there can be only one Sanhedrin in a city. In reality, a Sanhedrin can be the king's or ruler's council, a body of high officials; a congress of allies or confederates, a military war council, etc. (see Liddell-Scott, *Greek-English Lexicon*, [s.v.](#) συνέριον).

Another group of scholars believes that there were in Jerusalem three small Sanhedrins, each of a different composition and task—priestly, Pharisaic, and aristocratic—each consisting of 23 members. A joint meeting of the three Sanhedrins headed by a *nasi* and *av bet din*, constituted the Great [Sanhedrin](#) of 71 (Geiger, Derenbourg, etc.). This imaginary reconstruction flounders on the [Tosefta](#) ([Hag.](#) 2:9 and [Sanh.](#) 7:1) and the Jerusalem [Talmud](#) ([Sanh.](#) 1:7, 19c), according to which, contrary to the Babylonian Talmud ([Sanh.](#) 88b), the small Sanhedrin consisted only of three. The third group of scholars is agreed that there were two supreme bodies in Jerusalem, a political and a religious, but disagree on almost everything else. Buechler thinks that the religious body was properly called *Bet Din ha-Gadol she-be-Lishkat ha-Gazit* ("Great *Bet Din* in the Chamber of Hewn Stone"), and the application to it of the term Sanhedrin was a misnomer. Zeitlin points out that there is no evidence that the political Sanhedrin was called "Great," but his view that the division between the political and the religious authorities dates back to Simeon the Hasmonean is questionable. More likely the separation was the result of the fact that the political views of the religious Sanhedrin were not sought by Hyrcanus and Aristobulus, the sons of Salome, nor by Herod, nor by the high priests who were appointed by Romans.

The opponents of the theory of the double [Sanhedrin](#) base themselves mainly on three arguments: no proof exists that the *nasi* headed the Sanhedrin in the days of the Temple; the priests' authority to "declare" the law is scripturally prescribed (Deut. 17:9), so that the high priest must have at least formally

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headed the religious Sanhedrin, as he did among the Qumran sect; and in Judaism there is no division between the religious and the secular. As against these arguments, it has been pointed out: the law concerning the assignment of one's property to the *nasi* (Ned. 5:5), which dates from Temple days, assumes that the *nasi* headed the Sanhedrin, just as he did in the post-destruction era; the Pharisaic exegesis dispensed with the need of priests in issuing legal decisions, the Pharisees basing their ruling on the superfluous words "and to judge" (Deut. 17:9; see Sif., [Deut.](#) 153); and the Pharisees did not voluntarily relinquish their right to judge on political matters. The political rulers simply did not consult them. After the destruction of the Temple the religious Sanhedrin was reconvened in [Jabneh](#), and, under the presidency of the *nasi*, it now became also the supreme political instrument for all the Jews of the Roman Empire. When Judea was destroyed as a result of the failure of Bar Kokhba, the Sanhedrin moved to Galilee. At first it met in Usha, then in nearby Shefaram, subsequently, in Judah ha-Nasi's time, in Bet She'arim and Sepphoris, and in the end in Tiberias. The Romans apparently withdrew their recognition of the Sanhedrin when they dissolved the patriarchate.

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